

Indian Law Quiz - Answers

Date: November 16, 2025

INDIAN LAW QUIZ - ANSWERS

Date: November 16, 2025

Answer 1:

INSTRUCTIONS

1. Read each question carefully
2. Choose the best answer for multiple choice questions
3. Write your answers clearly in the space provided
4. Attempt all questions
5. Time allowed: As specified by instructor

QUESTIONS

1. *Indira Nehru Gandhi v. Raj Narain* (1975): The Supreme Court struck down Clause (4) of Article 329-A, which was inserted by the 39th Amendment Act, 1975, to place the election of the Prime Minister beyond the scrutiny of the courts. The Court held that this violated the basic structure of the Constitution by undermining the principles of free and fair elections and judicial review.

2. *Minerva Mills Ltd. v. Union of India* (1980): The Court invalidated Sections 4 and 55 of the 42nd Amendment Act, 1976. Section 55 had granted unlimited amending power to the Parliament, while Section 4 had placed Directive Principles of State Policy above Fundamental Rights. The Court ruled that limited amending power and the harmony between Fundamental Rights and Directive Principles are essential features of the basic structure. Answer 2: The collegium system is a mechanism for the appointment and transfer of judges in the higher judiciary, which evolved through a series of Supreme Court judgments (*First, Second, and Third Judges Cases*). It is not explicitly mentioned in the Constitution. Its constitutional validity is debated because it vests significant power in the hands of the judiciary itself (the Chief Justice of India and a collegium of senior-most judges), which critics argue is opaque and unaccountable. Challenges include a lack of transparency in selection criteria, potential for nepotism, and the absence of an external oversight mechanism, which undermines the principle of checks and balances. The National Judicial Appointments Commission (NJAC) Act, 2014, was an attempt by the Parliament to replace the collegium system with a more transparent body that included the Union Law Minister and two eminent persons, in addition to senior judges. However, in *Supreme Court Advocates-on-Record Association v. Union of India* (2015), the Supreme Court struck down the NJAC Act as unconstitutional, holding that it violated the independence of the judiciary, which is a part of the basic structure of the Constitution. The judgment reaffirmed the primacy of the collegium system, but also acknowledged the need for reforms to improve its transparency and functioning. Answer 3: A 'curative petition' is the last and final legal remedy available in the Indian judicial system, which can be filed after the dismissal of a review petition. It is a concept that originated from the Supreme Court's judgment in *Rupa Ashok Hurra v. Ashok Hurra* (2002) to prevent miscarriage of justice and to correct gross errors that may have crept into its judgments. It is different from a 'review petition' in several ways. A review petition is filed under Article 137 of the Constitution and is heard, whenever possible, by the same bench that delivered the original judgment. A curative petition, however, is heard by a bench comprising the three senior-most judges of the Supreme Court and the judges who delivered the original judgment. A curative petition can be entertained only on very narrow and specific grounds:

1. Violation of the principles of natural justice, such as the petitioner not being heard by the court before the order was passed.

2. Where the judge failed to disclose a conflict of interest, leading to a reasonable apprehension of bias in the judgment. The petitioner must certify that the grounds mentioned had been taken in the review petition and that it was dismissed by circulation. Answer 4: The right to privacy in India evolved through judicial interpretation over several decades. Initially, in cases like *M.P. Sharma v. Satish Chandra* (1954) and *Kharak Singh v. State of U.P.* (1962), the Supreme Court held that privacy was not a distinct fundamental right. However, with changing times, smaller benches began to recognize it as an intrinsic part of the right to life and personal liberty under Article 21. This evolution culminated in the landmark nine-judge bench decision in *Justice K.S. Puttaswamy (Retd.) v. Union of India* (2017), which unanimously declared that the right to privacy is a fundamental right, protected as an intrinsic part of the right to life and personal liberty under Article 21 and as a part of the freedoms guaranteed by Part III of the Constitution. The Court also laid down a three-fold test for any law that seeks to limit this right. The state must prove that the law is:

1. **Legality:** The action must be sanctioned by law.

2. **Legitimate Aim:** The proposed action must be necessary in a democratic society for a legitimate aim.

3. **Proportionality:** The extent of the interference must be proportionate to the need for such interference. This ensures that the intrusion is minimal and necessary to achieve the state's objective. Answer 5: Article 123 of the Constitution grants the President of India the power to promulgate Ordinances when Parliament is not in session and when he is satisfied that circumstances exist which render it necessary for him to take immediate action. An ordinance has the same force and effect as an Act of Parliament but must be approved by Parliament within six weeks of its reassembly; otherwise, it ceases to operate.

The limitations on this power are:

1. It can only be exercised when both Houses of Parliament are not in session.

2. The President must be satisfied of the necessity for immediate action.

3. The ordinance is subject to the same constitutional limitations as an Act of Parliament and cannot abridge Fundamental Rights. The potential for misuse lies in the executive bypassing the normal legislative process, especially to avoid debate and scrutiny on controversial laws. The re-promulgation of ordinances without placing them before the legislature has been a significant concern. The role of judicial review in this matter has been clarified through case law. In *D.C. Wadhwa v. State of Bihar* (1987), the Supreme Court strongly condemned the practice of re-promulgating ordinances as a "fraud on the Constitution." Later, in *Krishna Kumar Singh v. State of Bihar* (2017), a seven-judge bench held that the President's satisfaction regarding the need for an ordinance is subject to judicial review. The Court can strike down an ordinance if it is found that the President's satisfaction was based on extraneous or irrelevant grounds or was made in a mala fide manner. ---

Generated by SME Document Export Tool Good Luck!